

		However, the court may consider new evidence on reply when submitted in rebuttal to points raised in the opposition papers. (<i>Karlsson v. Ford Motor Co.</i> (2006) 140 Cal.App.4th 1202, 1216.) Here, the supplemental declaration submitted by Mokri was in direct response to points raised by Defendant Carfax in its opposition papers and the court will consider them. However, the court will allow Defendant Carfax an opportunity to respond to the new evidence and shall decide the matter only after Defendant Carfax has had an opportunity to do so. Brad A. Mokri shall give notice of this ruling.
6	Robinson vs. Ortiz 30-2024-01438864	<u>Motion to Seal</u> Defendant Matias Salinas Ortiz's Motion to Seal is CONTINUED to November 17, 2026 at 9:00 a.m. in Department N15. Defendant Matias Salinas Ortiz is ORDERED to serve all motion papers upon all parties that have appeared in this case and upon any party that already has access to the Declaration of Matias Salinas Ortiz in Support of Opposition to Plaintiff's Motion to Strike. Defendant Matias Salinas Ortiz is ORDERED to file a proof of service showing that he has complied with the above order within 30 days of this ruling. The court ORDERS that the following be STRICKEN from the record: 1. Declaration of Matias Salinas Ortiz in Support of Opposition to Plaintiff's Motion to Strike (Conditionally Filed Under Seal), page 6 of ROA #149; and 2. Declaration of Matias Salinas Ortiz in Support of Opposition to Plaintiff's Motion to Strike and all attached exhibits, pages 7-66 of ROA #149. <u>Pending Motion</u> Defendant Matias Salinas Ortiz moves to seal the Declaration of Matias Salinas Ortiz in Support of

		Opposition to Plaintiff's Motion to Strike (Ortiz Declaration). <u>Standard for Motion to Seal</u> "Unless confidentiality is required by law, court records are presumed to be open." (Cal. Rules of Court, rule 2.550(c); see <i>In re Marriage of Tamir</i> (2021) 72 Cal.App.5th 1068, 1078 [public's right of access to court records is based on both common law right of access to public documents, as well as constitutional right grounded in the First Amendment].) To seal a record, the moving party must file a motion for such relief, along with a memorandum and a declaration containing facts sufficient to justify the sealing. (Cal. Rules of Court, Rule 2.551, subd. (b)(1).) The motion must be served on all parties, and unless the court orders otherwise, a complete copy of the document must be served on all other parties that already possess copies, along with the redacted version. (Cal. Rules of Court, Rule 2.551, subd. (b)(2).) To grant a motion to seal, the court must expressly find that: 1. an overriding interest exists that overcomes the right of public access to the record; 2. the overriding interest supports sealing the records; 3. a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; 4. the proposed sealing is narrowly tailored; and 5. no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, Rule 2.550, subd. (d); <i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal.App.4th 974, 988.) Examples of documents that may qualify to be sealed are: • Documents containing trade secrets, (see <i>In re Providian Credit Card Cases</i> (2002) 96 Cal.App.4th 292, 300; <i>McGuan v. Endovascular Tech., Inc.</i>, <i>supra</i>, 182 Cal.App.4th at p. 988 [business' quality control records and complaint handling procedures may be sealed]);
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		- Documents containing material protected by a privilege, (see <i>Huffy Corp. v. Superior Court</i> (2003) 112 Cal.App.4th 97, 108 [documents protected by attorney-client privilege may be sealed]); - Confidential settlement agreement, (see <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1283). A sealing order must: (a) specifically state facts supporting the above findings; and (b) be narrowly tailored (<i>i.e.</i>, it should direct sealing of only those documents and pages that contain material that needs to be placed under seal; all other portions of each document or page must remain in the public file). (See Cal. Rules of Court, rule 2.550(e)(1); Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial (Rutter 2017) ¶ 9:418.1.) Here, the requirements of Rule 2.551 have not been met. Defendant has not filed with the court a proof of service showing that he has served the motion papers on all parties that have appeared in this action and on all parties that have access to the records to be placed under seal. Therefore, the court will continue the hearing on this motion and order that Defendant serve the motion papers as required by Rule 2.551(b)(2). If Defendant fails to do so, the court may deny the motion. In addition, rather than filing the Ortiz Declaration conditionally under seal, Defendant attached the Ortiz Declaration to the motion papers. (See ROA #149.) Therefore, the court will strike the attached Ortiz Declaration from the motion papers. The court clerk shall give notice of this ruling.
7	So Cal Residential Homes, LLC vs. Tirado 30-2025-01475479	<u>Motion for Release of Payments and to Modify Payments</u> Plaintiff So Cal Residential Homes, LLC's Application for the Release of Rental Deposits to Plaintiff and Increase in Monthly Rental Deposit Amount is DENIED.